

STATE OF LOUISIANA
Twenty-First Judicial District Court
FOR THE PARISH OF Tangipahoa Parish
No.: TEST-2026-000001
Division: "Division A"
State of Louisiana
vs. Jordan Avery Reyes
MOTION TO SET ASIDE CONVICTION AND
DISMISS PROSECUTION

NOW INTO HONORABLE COURT, comes

☒ Defendant, OR

☐ Defendant through undersigned Counsel,

who moves that the conviction pursuant to Louisiana Code of Criminal Procedure

☒ Article 894(B) Misdemeanors, OR

☐ Article 893(E) Felonies

in the above numbered case be set aside and that the prosecution dismissed in accordance with the Code of Criminal Procedure in that the period of the deferred sentence has run and petitioner has successfully completed the terms of his probation.

The mover is further identified below:

DOCKET NUMBER: TEST-2026-000001

CHARGE: SYNTHETIC misdemeanor charge - TEST statute

DATE OF ARREST: 2021-02-10

ARRESTING AGENCY: SYNTHETIC Example Arresting Agency

CITY/PARISH OF ARREST: SYNTHETIC Example City / Tangipahoa Parish

The Mover prays that, after a contradictory hearing with the District Attorney's Office, the Court order the above numbered case be set aside and that the prosecution dismissed in accordance with the Code of Criminal Procedure.

Respectfully submitted,

Signature of Attorney for Mover/Defendant: _____

Attorney for Mover/Defendant Name: _____

Attorney's Bar Roll No.: _____

Address: _____

City, State, ZIP Code: _____

Telephone Number: _____

If not represented by counsel:

Signature of Mover/Defendant: _____

Mover/Defendant Name: Jordan Avery Reyes

Address: 100 Example Street

City, State, ZIP Code: Hammond, LA 70401

Telephone Number: 985-555-0100

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RULE TO SHOW CAUSE

IT IS HEREBY ORDERED, that the District Attorney show cause on the _____ day of _____,
20 _____, at _____ o'clock ____m why the foregoing motion should not be granted.

THUS ORDERED AND SIGNED this ____ day of _____, 20 ____ at _____, Louisiana,
_____.

JUDGE

PLEASE SERVE:

1. District Attorney: _____
2. Attorney for Defendant and/or Defendant _____

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ORDER OF DISMISSAL

Considering the Motion to Set Aside Conviction and Dismiss Prosecution, the hearing conducted on the representation of the State of Louisiana of its consent hereto, and that there is no opposition for any good cause appearing herein;

IT IS ORDERED, ADJUDGED AND DECREED that this conviction is set aside and the prosecution dismissed for purposes of expungement.

THUS ORDERED AND SIGNED this ____ day of _____, 20 ____ at _____, Louisiana.

JUDGE

PLEASE SERVE:

1. District Attorney: _____
2. Attorney for Defendant and/or Defendant _____

ARTICLE 987 PARTICIPANT AND FILING INSTRUCTIONS

Prepared for: Jordan Avery Reyes

Louisiana Article 987 participant instructions

Prepared for Jordan Avery Reyes and only for obligation:track-only:LA:la-987-set-aside-and-dismiss.

What is included

- la-987-set-aside-and-dismiss-primary-filing-1: the mandatory three-part LA-CCRP-ART-987 statutory instrument - Motion, Rule to Show Cause, and Order of Dismissal.
- la-987-set-aside-and-dismiss-instructions-2: participant and filing instructions included in the assembled packet.

What this filing does and does not do

This is not an expungement and does not itself clear any record. It is the predicate filing that can convert a completed deferred sentence into a set-aside conviction and dismissed prosecution under Article 894(B) for a misdemeanor or Article 893(E) for a felony. After the Order of Dismissal is signed, return to the Article 977(A)(1) misdemeanor expungement track or Article 978(A)(1) felony expungement track that applies.

Confirm the completion allegations before execution

Synthetic fixture inputs expressly confirm elapsed deferral and successful probation. Real participants must verify both against their actual records; this fixture is not a filing or an eligibility decision.

Required before filing

Check every prefilled neutral participant and case fact against the court record and correct the packet if it disagrees. Every item below remains yours alone and is intentionally left blank on the instrument.

Document | Page | Blank on the document | What you must supply

LA-CCRP-ART-987 | 2 | District Attorney | Confirm the District Attorney recipient and service address with the sentencing-court clerk.

LA-CCRP-ART-987 | 2 | Attorney for Defendant and/or Defendant | Confirm the Attorney for Defendant and/or Defendant recipient and service address with the sentencing-court clerk.

LA-CCRP-ART-987 | 3 | District Attorney | Confirm the District Attorney recipient and service address with the sentencing-court clerk.

LA-CCRP-ART-987 | 3 | Attorney for Defendant and/or Defendant | Confirm the Attorney for Defendant and/or Defendant recipient and service address with the sentencing-court clerk.

Conditionally obtain the minute entry or sentencing order showing the deferred sentence under Article 893 or Article 894 from the clerk of the sentencing court wherever the court or district attorney asks to see the basis for the deferral. Check the deferred-sentence date against it.

Conditionally obtain proof of successful completion of probation from the supervising probation office, or the Department of Public Safety and Corrections, Division of Probation and Parole, wherever completion may be questioned, which the committed record says is most cases. Have it before the return date and check your completion answer against it.

Fields deliberately left blank

- Sign only the applicable statutory representation block after completing and verifying the motion. If represented, your attorney handles the attorney block. No extra signature-date field is invented on the prescribed form.
- Leave the Rule to Show Cause return date, time, place, and judge signature blank. The court sets them and the clerk supplies the return information.
- The Order retains the statute's preprinted consideration and decree. They are unsigned proposed text, not proof of consent, hearing, judgment or relief. Leave actual court dates, places and judicial signatures blank.
- The district attorney's response to the rule belongs to the district attorney and is not a participant field.

Stop and get help

Stop self-help if the district attorney opposes the motion at the contradictory hearing; if there is any dispute whether the deferred-sentence period ran or probation was successfully completed; if the court sets a contested evidentiary hearing; or if you are unsure whether the sentence was deferred under Article 893 or Article 894, or deferred at all.

This built packet is pending independent completeness, raster, visual, and counsel review. It is not approved for live use and opens no route.

Louisiana Article 987 filing instructions

Prepared for Jordan Avery Reyes.

File the three-part Article 987 instrument - Motion, Rule to Show Cause, and Order of Dismissal - with the clerk of the court that imposed the deferred sentence, in the parish of conviction. Article 986 makes Article 987 the form to be used; Article 986(C) lets a clerk alter it only to show the name of that court.

Ask that clerk for the filing cost before filing. Article 983 governs the cost of an expungement, not this Article 987 set-aside; ordinary motion costs may apply and vary by parish, and the committed record supplies no figure.

Ask that named clerk what fee-relief procedure, if any, applies to this Article 987 motion. The absence of a waiver in Article 987 is not a waiver procedure or proof no relief exists. Do not automatically attach Article 988 or treat expungement charges as this motion's charge.

The Rule to Show Cause is directed to the district attorney. The motion's prayer contemplates a contradictory hearing with the district attorney's office. No sixty-day objection window applies; that scheme belongs to Articles 979 and 980 and governs a motion to expunge.

Service is on the district attorney and on the attorney for the defendant or the defendant. Confirm the clerk's filing-copy and service mechanics, obtain the clerk-set return date, time, and place, and do not fill a court field yourself.

Get legal help for district-attorney opposition, disputed deferral or probation completion, an uncertain Article 893/894 basis, or a contested evidentiary hearing. The prescribed routine rule/hearing alone is not a new universal counsel requirement. Do not ignore any actual court date.

If the court signs the Order of Dismissal, ask the clerk for a certified copy. That signed order is needed for the later Article 977 or Article 978 expungement track; this Article 987 filing clears nothing by itself.

Route: obligation;track-only:LA:la-987-set-aside-and-dismiss